

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Russo	Team: Squad #10	CCRB Case #: 202107178	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Monday, 11/15/2021 9:00 AM, Monday, 11/15/2021 9:30 AM	Location of Incident: On the corner of West 165th Street and Anderson Avenue; inside an ambulance	18 Mo. SOL 5/15/2023	Precinct: 44		
Date/Time CV Reported Thu, 11/18/2021 9:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/25/2021 8:31 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Dahuan Li	20848	963118	044 PCT
2. PO Waldyn Cuevas	24717	971028	044 PCT
3. SGT Christopher Oconnor	04812	942284	044 PCT
4. PO Foizal Khan	19939	965237	044 PCT
5. PO Jovanna Martes	24350	953055	044 PCT
6. PO Tyrel Howard	08529	966629	044 PCT
7. PO Julian Reyes	19056	959128	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Shavonne Hall	20461	963065	044 PCT
2. PO Amelia Brown	22875	962270	044 PCT
3. PO Jeffrey Santos	05777	957133	044 PCT
4. PO Eddie Encarnacion	26626	971045	044 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Dahuan Li	Abuse: On the corner of West 165th Street and Anderson Avenue, Police Officer Dahuan Li stopped § 87(2)(b)	A . Within NYPD Guidelines
B . SGT Christopher Oconnor	Abuse: On the corner of West 165th Street and Anderson Avenue, Sergeant Christopher Oconnor forcibly removed § 87(2)(b) to the hospital.	B . Within NYPD Guidelines
C . PO Jovanna Martes	Force: Inside an ambulance, Police Officer Jovanna Martes used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Julian Reyes	Force: Inside an ambulance, Police Officer Julian Reyes used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Tyrel Howard	Force: Inside an ambulance, Police Officer Tyrel Howard used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Jovanna Martes	Discourtesy: Inside an ambulance, Police Officer Jovanna Martes spoke discourteously to § 87(2)(b)	F . Within NYPD Guidelines
G . PO Jovanna Martes	Force: Inside an ambulance, Police Officer Jovanna Martes used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . PO Jovanna Martes	Force: Inside an ambulance, Police Officer Jovanna Martes used physical force against § 87(2)(b)	H . Substantiated
I . PO Julian Reyes	Force: Inside an ambulance, Police Officer Julian Reyes used physical force against § 87(2)(b)	I . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
J . PO Jovanna Martes	Force: Inside an ambulance, Police Officer Jovanna Martes used a chokehold against § 87(2)(b)	J . Substantiated
K . PO Jovanna Martes	Force: Inside an ambulance, Police Officer Jovanna Martes restricted § 87(2)(b) breathing.	K . Substantiated
L . PO Julian Reyes	Force: Inside an ambulance, Police Officer Julian Reyes used a chokehold against § 87(2)(b)	L . Substantiated
M . PO Julian Reyes	Force: Inside an ambulance, Police Officer Julian Reyes restricted § 87(2)(b) breathing.	M . Substantiated
N . PO Tyrel Howard	Force: Inside an ambulance, Police Officer Tyrel Howard used physical force against § 87(2)(b)	N . Within NYPD Guidelines
O . PO Waldyn Cuevas	Force: Inside an ambulance, Police Officer Waldyn Cuevas used physical force against § 87(2)(b)	O . Within NYPD Guidelines
P . PO Jovanna Martes	Off. Language: Inside an ambulance, Police Officer Jovanna Martes made offensive remarks to § 87(2)(b) regarding a perceived mental disability.	P . Substantiated
Q . PO Foizal Khan	Force: Inside an ambulance, Police Officer Foizal Khan used physical force against § 87(2)(b)	Q . Within NYPD Guidelines
R . PO Tyrel Howard	Force: Inside an ambulance, Police Officer Tyrel Howard used physical force against § 87(2)(b)	R . Within NYPD Guidelines
S . PO Waldyn Cuevas	Force: Inside an ambulance, Police Officer Waldyn Cuevas used physical force against § 87(2)(b)	S . Within NYPD Guidelines
T . PO Jovanna Martes	Force: Inside an ambulance, Police Officer Jovanna Martes used physical force against § 87(2)(b)	T . Within NYPD Guidelines
U . PO Jovanna Martes	Force: Inside an ambulance, Police Officer Jovanna Martes used physical force against § 87(2)(b)	U . Substantiated
V . PO Jovanna Martes	Force: Inside an ambulance, Police Officer Jovanna Martes used a chokehold against § 87(2)(b)	V . Unsubstantiated
W . PO Jovanna Martes	Force: Inside an ambulance, Police Officer Jovanna Martes restricted § 87(2)(b) breathing.	W . Unsubstantiated
X . PO Jovanna Martes	Abuse: Inside an ambulance, Police Officer Jovanna Martes threatened to arrest § 87(2)(b)	X . Within NYPD Guidelines
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Inv. Div. Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On November 18, 2021, § 87(2)(b) filed this complaint with the Internal Affairs Bureau by phone. On November 25, 2021, the CCRB received this complaint under IAB log number § 87(2)(b).

On November 15, 2021, at approximately 9:00 a.m., Police Officers Dahuan Li, Eddie Encarnacion, and Waldyn Cuevas, all from the 44th Precinct, responded to 165th Street and Anderson Avenue in the Bronx regarding an assault with a weapon. Upon arrival, PO Li stopped § 87(2)(b) and conducted an investigation (**Allegation A: Abuse of Authority-Stop, within NYPD guidelines**). Additional units, including Sergeant Christopher Oconnor, Police Officers Jovanna Martes, Tyrel Howard, Julian Reyes, Foizal Khan, Shavonne Hall, Amelia Brown and Jeffrey Santos, all from the 44th Precinct, arrived on scene. (PO Martes has since changed her last name to Woloski). After conducting an investigation, Sgt. Oconnor called EMS to determine if § 87(2)(b) needed a psychiatric evaluation, which was confirmed (**Allegation B: Abuse of Authority-Forcible removal to the hospital, within NYPD guidelines**).

While inside of the ambulance, at approximately 9:30 a.m., § 87(2)(b) attempted to move his handcuffs in front of him. PO Martes, PO Howard, and PO Reyes entered the ambulance to restrain § 87(2)(b) (**Allegations C, D, and E: Force-Physical Force, within NYPD guidelines**). PO Martes told § 87(2)(b) not to put his “fucking hands” in front of him (**Allegation F: Discourtesy-Word, within NYPD guidelines**).

After preventing him from adjusting his handcuffs, PO Martes decided to reposition § 87(2)(b) from laying on his side to laying on his back (**Allegation G: Force-Physical Force, within NYPD guidelines**). PO Martes and PO Reyes pulled § 87(2)(b) upper body toward the gurney (**Allegations H and I: Force-Physical Force, substantiated**). In doing so, PO Martes and PO Reyes pulled § 87(2)(b) shirt backwards, toward the gurney, which made contact with his throat (**Allegation J: Force-Chokehold, substantiated**) (**Allegation K: Force-Restricted Breathing, substantiated**) (**Allegation L: Force-Chokehold, substantiated**) (**Allegation M: Force-Restricted Breathing, substantiated**). Meanwhile, PO Cuevas and PO Howard restrained § 87(2)(b) legs (**Allegations N and O: Force-Physical Force, within NYPD Guidelines**).

PO Martes told § 87(2)(b) that he was being recorded and “looks stupid” (**Allegation L: Offensive Language-Other, substantiated**).

Once partially securing § 87(2)(b) onto the gurney, PO Khan, PO Howard, and PO Cuevas held § 87(2)(b) body in place (**Allegation Q, R and S: Force-Physical Force, within NYPD guidelines**). PO Martes pushed § 87(2)(b) head against the gurney, while allegedly making contact with his neck and restricting his breathing (**Allegation T: Force-Physical Force, within NYPD guidelines**) (**Allegation U: Force-Physical Force, substantiated**) (**Allegation V: Force-Chokehold, unable to determine**) (**Allegation W: Force-Restricted Breathing, unable to determine**). PO Howard attempted to place a mask on § 87(2)(b) and PO Martes told him that if he bit anyone, he would get locked up (**Allegation X: Abuse of Authority-Threat of Arrest, within NYPD guidelines**).

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) was not arrested or issued a summons as a result of this incident.

The investigation obtained body-worn camera from all of the named officers (**BR01**). The relevant footage will be discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: On the corner of West 165th Street and Anderson Avenue, Police Officer Dahuan Li stopped § 87(2)(b)

Allegation (B) Abuse of Authority: On the corner of West 165th Street and Anderson Avenue, Sergeant Christopher Oconnor forcibly removed § 87(2)(b) to the hospital.

PO Li's BWC (BR02) shows that, at the 00:57 mark, he approaches the bodega on the corner of West 165th Street and Anderson Avenue. § 87(2)(b) stands in front of the bodega, holding a bat, and wearing a dark overcoat. PO Li tells § 87(2)(b) to put the bat down and step away from it. § 87(2)(b) complies, says that he took the bat from an individual inside that tried to hit him with it, and confirms that he is the 911 caller. At the 01:38 mark, PO Li enters the store to speak with the individuals inside, while PO Encarnacion and PO Cuevas speak to § 87(2)(b) outside. A male inside tells PO Li that § 87(2)(b) entered the store with an attitude and threatened to break the store. At the 04:12 mark, an employee confirms that the bat belongs to the store. He shares that "the other day," § 87(2)(b) went into the store with a hammer and was threatening them. The employees deny assaulting § 87(2)(b). A Black female customer in the store tells PO Li that § 87(2)(b) goes into the store to trouble the employees. At the 04:58 mark, PO Li asks § 87(2)(b) if he has any "mental problems," and § 87(2)(b) confirms that he does. At the 10:58 mark, PO Li calls an ambulance for an EDP. At the 15:40 mark, PO Li approaches a Black male standing outside of the bodega, who tells him that § 87(2)(b) got "a little wild" inside the store. He denied that anyone hit § 87(2)(b) with a bat and explained that the employee pulled out the bat, but § 87(2)(b) took it from him and hit himself in the arm with it. At the 18:57 mark, PO Li asks to see the cameras and, at the 31:30 mark, sees that § 87(2)(b) took the bat from the employees. The employee is not captured hitting § 87(2)(b) with the bat. At the 35:20 mark, § 87(2)(b) girlfriend speaks to PO Reyes and PO Li, and she shares that § 87(2)(b) is bipolar.

PO Encarnacion's BWC (BR03) shows that, at the 10:00 § 87(2)(b) tells the officers to call EMS and that he is going to the hospital. He takes off his coat and his sweater and shows the officers the area on his elbow where he was hurt. At the 27:34 mark, Sgt. Oconnor, PO Martes, and PO Howard place § 87(2)(b) in handcuffs. He does not resist, and he willingly walks to the ambulance.

PO Brown's BWC (BR04) shows that, at the 08:50 mark, Sgt. Oconnor arrives. § 87(2)(b) shouts at the officers and says he wants to press charges against the employee inside. § 87(2)(b) begins recording and screams into the video. At the 12:15 mark, PO Brown asks Sgt. Oconnor and PO Li, who are watching video footage inside the store, for an update and they agree that § 87(2)(b) was an EDP "for now." At the 13:14 mark, an EMT tells PO Brown that they cannot EDP § 87(2)(b) until he is confirmed to be a threat to himself or others. At the 13:26 mark, she returns into the store and tells Sgt. Oconnor what the EMT said. Sgt. Oconnor exits the store and speaks with the EMTs at the 14:21 mark. Their conversation is not heard on any officers' BWC.

§ 87(2)(b) (BR05) stated that he called the police because the bodega clerk hit his elbow with a bat. § 87(2)(b) took the bat from the clerk and stood outside to wait for the police. PO Li, PO Cuevas, and PO Encarnacion arrived, and PO Li went to speak with individual inside the bodega. § 87(2)(b) was holding onto the bat, and PO Cuevas told him to put it down. § 87(2)(b) complied. When PO Cuevas asked what happened, § 87(2)(b) told him that the clerk hit him with the bat and showed the area where he was struck. A few minutes later, Sgt. Oconnor arrived. He reviewed the cameras and informed § 87(2)(b) that he was captured on security footage hitting himself with the bat, which made him a threat to himself and others, and that he would be going to the hospital. The officers then placed § 87(2)(b) in handcuffs and escorted him to the ambulance.

Sgt. Oconnor (BR06) stated that when he arrived on scene, he observed that § 87(2)(b) was upset and annoyed at the questions officers were asking him. PO Li informed Sgt. Oconnor that

§ 87(2)(b) claimed an employee hit him with a bat; however, the witnesses, employees, and store security footage all confirmed that § 87(2)(b) had not been assaulted. Sgt. Oconnor also confirmed this by personally reviewing the security footage. § 87(2)(b) girlfriend was on scene, and she informed the officers that § 87(2)(b) was acting erratically and unusually as he thought things were happening that were not. Sgt. Oconnor then determined that, based on § 87(2)(b) irate behavior, false allegations that bodega employee had struck him with a bat, and witness statements indicating that he needed medical attention, § 87(2)(b) needed to be evaluated by EMS. EMS spoke to § 87(2)(b) and determined that he needed to go to the hospital. Sgt. Oconnor did not know how they came to that determination.

PO Li was not interviewed because his statement would not affect the disposition of this allegation.

The EMTs were not able to be interviewed and medical records were not obtained because § 87(2)(b) did not provide the investigation with signed HIPAA medical release forms.

EVENT Information #§ 87(2)(b) (BR07) notes that, at 8:56 a.m., a 911 call came over. There were two males heard, with a “violent background.” The § 87(2)(b) stated that he was assaulted with a bat by the manager of the store. § 87(2)(b) threatened to kill the person who hit him. The brief description provided was a Hispanic male with a beard, wearing all black, and a colorful hat. The included routes section at the bottom of the document notes that the officers arrived at 9:08 a.m.

The 911 call placed by § 87(2)(b) (BR38) notes that, as soon as the call began, there was inaudible screaming in the background. The entire audio file consists of § 87(2)(b) giving the 911 operator small amounts of information about the reported incident and periodically stopping to scream a variety of threats to someone in the background.

AIDED#§ 87(2)(b) (BR20) notes, in the details section, that § 87(2)(b) was irate and uncooperative when the officers arrived on scene. § 87(2)(b) complained of a minor laceration on the left elbow. He was transported to Lincoln Hospital.

People v. Peterson, 110 A.D. 3d 1103 (BR08) found that in order to lawfully stop and detain a particular person, police officers must have reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor. When obtaining reasonable suspicion, officers must consider the similarities in provided descriptions of the defendant, as well as their temporal and spatial proximity to the incident of the crime.

New York Consolidated Laws, Penal Law 120.00 (BR09) notes that a person is guilty of assault in the third degree when with intent to cause physical injury to another person, someone causes such injury to that person. This crime is a misdemeanor.

Patrol Guide procedure 221-13 (BR10) notes that a person is emotionally disturbed when they appear to be mentally ill or temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others.

The BWC shows that § 87(2)(b) was in front of the store where the alleged assault occurred, within about fifteen minutes of the 911 call, holding a bat, and generally matching the description of the assailant—male with a beard and wearing a dark coat. § 87(2)(g)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) It is recommended that

Allegation A be closed as **Within NYPD Guidelines**.

As noted above, § 87(2)(b) was holding a bat when the officers initially approached the scene. After conducting their investigation—reviewing the CCTV from the bodega and interviewing witnesses at the scene—the officers learned that no one assaulted § 87(2)(b) with a bat, that § 87(2)(b) was threatening the employees, which he has done in the past, and that he had “mental problems,” which § 87(2)(b) personally confirmed. Additionally, a witness on scene

confirmed that § 87(2)(b) hit himself with the bat. § 87(2)(g)

it is recommended that **Allegation B** be closed as **Within NYPD Guidelines**.

Allegation (C) Force: Inside an ambulance, Police Officer Jovanna Martes used physical force against § 87(2)(b)

Allegation (D) Force: Inside an ambulance, Police Officer Julian Reyes used physical force against § 87(2)(b)

Allegation (E) Force: Inside an ambulance, Police Officer Tyrel Howard used physical force against § 87(2)(b)

Allegation (F) Discourtesy: Inside an ambulance, Police Officer Jovanna Martes spoke discourteously to § 87(2)(b)

PO Martes's BWC (**BR11**) shows that, at the 09:55 mark, she escorts § 87(2)(b) into the ambulance. Upon entry, § 87(2)(b) sits down, brings his handcuffs to his feet and brings his left leg through them, in an attempt to move them from the rear to the front. PO Martes immediately grabs his arm and tells him not to do it. As § 87(2)(b) only moved one leg through to the back, § 87(2)(b) is restrained with his left arm in front of him and his right arm behind him with the handcuffs between his legs. At the 10:05 mark, she tells him not to put his "fucking hands" in front.

PO Reyes's BWC (**BR12**) shows that, at the 07:39 mark, PO Reyes runs inside of the ambulance, where PO Martes and PO Howard grab § 87(2)(b) arms after he attempted to bring his handcuffs in front of him. PO Reyes holds onto § 87(2)(b) legs, moving § 87(2)(b) to a laying position on his right side. The officers hold § 87(2)(b) in place until they decide how to move forward at the 07:54 mark.

§ 87(2)(b) (**BR05**) stated that upon entering the ambulance, he wanted to move his handcuffs from behind his back to in front of him. He moved his right leg underneath the handcuffs, leaving his handcuffs pressed tightly against his groin. PO Cuevas noticed § 87(2)(b) actions and immediately approached with PO Martes. The officers proceeded to press his body toward the gurney, attempting to have him lay flat.

PO Martes (**BR15**) stated that when she entered the ambulance, she observed that § 87(2)(b) had moved his handcuffs in front of his body, but she did not see him do this. § 87(2)(b) wound up with one leg on either side of his handcuffed wrists. The officers asked him to lay back, and § 87(2)(b) did not comply.

PO Reyes's statement (**BR14**) was generally consistent with PO Martes' statement.

PO Cuevas's statement (**BR16**) was generally consistent with PO Martes's statement, except for the following additional information. When commenting on § 87(2)(b) handcuff position, PO Cuevas stated that it is dangerous for an EDP to have his handcuffs in front of him because there is a risk of them reaching for a weapon. PO Cuevas did not recall if any officers instructed § 87(2)(b) to do anything, including laying down.

PO Howard's statement (**BR17**) was generally consistent with PO Martes's statement, except for the following additional information. When discussing § 87(2)(b) handcuff placement, PO Howard stated that placing his handcuffs in front of him would make it more difficult to restrain § 87(2)(b) therefore, they decided to restrain him for their safety. PO Howard stated that there were no additional safety concerns at the time.

The investigation obtained negative results for Threat, Resistance, or Injury reports prepared in regard to this incident (**BR18**).

Patrol Guide procedure 200-02 notes that the NYPD's mission is to, in partnership with the community, value human life, respect the dignity of each individual, and render our services with courtesy and civility, while also maintaining a higher standard of integrity than is generally expected of others (**BR19**).

DAO-DCT 2015-15012 found that officers are prohibited from using discourteous language, except when in a highly dangerous or stressful situation. Officers shall not use discourteous language that serves no legitimate purpose other than to belittle (**BR22**).

Patrol Guide procedure 221-01 (**BR23**) states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject’s violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” Members are prohibited from using a chokehold, which is defined as “any pressure to the throat or windpipe [that] may prevent or hinder breathing or reduce intake of air. They are also prohibited from using “any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape or to overcome active physical resistance or assault.”

Patrol Guide procedure 221-02 (**BR24**) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

It is undisputed that § 87(2)(b) attempted to move his handcuffs in front of him when he entered the ambulance. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations C, D, and E** be closed as **within NYPD Guidelines**.

§ 87(2)(g) § 87(2)(b) attempt to move his handcuffs from the rear to the front and the officers’ struggle to gain control of his body, § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation F** be closed as **within NYPD guidelines**.

Allegation (G) Force: Inside an ambulance, Police Officer Jovanna Martes used physical force against § 87(2)(b)

PO Martes’s BWC (**BR11**) shows that, at the 10:00 mark, PO Martes, PO Howard, and PO Reyes hold § 87(2)(b) body in place after he attempted to move his handcuffs from the rear to the front. Once restrained, § 87(2)(b) does not make any physical movements or make any statements apart from, “Doing what? I’m not doing anything.” At the 10:10 mark, § 87(2)(b) lays on his right side. PO Howard says, “You want to spin him or leave him this way? Let’s leave him. Leave him this way.” PO Martes responds, “Howard, put him backwards. We’re going to strap him down.”

§ 87(2)(b) (**BR05**) provided photographs of his wrists (**BR37**), which were a result of the officers straightening his body, while his handcuffs were pressed against his groin.

PO Martes (**BR15**) stated that she was not aware of § 87(2)(b) handcuff position when using force to lay him on his back. She only recalled seeing his handcuffs in front of him. She did not recall if she took § 87(2)(b) hand positioning into consideration when using force to place him on his back.

PO Howard (**BR17**) stated that once § 87(2)(b) put his legs through his handcuffs, he was not properly restrained, so the officers decided to further restrain him for their safety. There were no additional safety concerns other than the positioning of his handcuffs when the officers came to this decision.

PO Cuevas (**BR16**) stated that when the officers observed him repositioning his handcuffs, § 87(2)(b) was screaming, and he was upset. It is dangerous for an EDP to have their handcuffs in the front because there is a risk that they could reach for a weapon, so the officers attempted to place § 87(2)(b) in a lying down position in order to strap him onto the gurney.

The investigation obtained negative results for Threat, Resistance, or Injury reports prepared in regard to this incident (**BR18**).

Patrol Guide procedure 221-01 (**BR23**) states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject’s violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.”

Patrol Guide procedure 221-02 (**BR24**) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

It is undisputed that § 87(2)(b) attempted to move his handcuffs in front of him when he entered the ambulance, that officers prevented him from completing this attempt, and that he ended up positioned with his handcuffs between his legs. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation G** be closed as **within NYPD guidelines**.

Allegation (H) Force: Inside an ambulance, Police Officer Jovanna Martes used physical force against § 87(2)(b)

Allegation (I) Force: Inside an ambulance, Police Officer Julian Reyes used physical force against § 87(2)(b)

against § 87(2)(b)

Allegation (J) Force: Inside an ambulance, Police Officer Jovanna Martes used a chokehold against § 87(2)(b)

Allegation (K) Force: Inside an ambulance, Police Officer Jovanna Martes restricted § 87(2)(b) breathing.

Allegation (L) Force: Inside an ambulance, Police Officer Julian Reyes used a chokehold against § 87(2)(b)

Allegation (M) Force: Inside an ambulance, Police Officer Julian Reyes restricted § 87(2)(b) breathing.

Allegation (N) Force: Inside an ambulance, Police Officer Tyrel Howard used physical force against § 87(2)(b)

Allegation (O) Force: Inside an ambulance, Police Officer Waldyn Cuevas used physical force against § 87(2)(b)

PO Reyes's BWC (BR12) shows that, at the 07:39 mark, PO Reyes runs inside of the ambulance, where PO Martes and PO Howard are grabbing § 87(2)(b) arms after he attempted to bring his handcuffs in front of him. PO Reyes and PO Cuevas grab § 87(2)(b) legs. The officers attempt to place § 87(2)(b) so that he is laying on his back by guiding his upper body and legs toward the gurney.

PO Cuevas's BWC (BR13) captures the force in the ambulance most clearly. At the 27:46 mark, PO Martes tells the officers to put § 87(2)(b) backwards so they can strap him down. PO Cuevas and PO Howard hold down § 87(2)(b) legs, while PO Martes and PO Reyes pull his upper body back toward the gurney. At the 27:53 mark, PO Martes and PO Reyes pull on § 87(2)(b) shoulders toward the gurney. They also grab onto the shoulder area of his jacket and pull him backwards. § 87(2)(b) moves his upper body forward, while the officers pull it back. At the 27:56 mark, PO Martes places her right arm across § 87(2)(b) shoulders with her forearm in the vicinity of his neck (BR34, BR36) and pulls backward. § 87(2)(b) is speaking and there is an inflection in his voice as PO Martes pulls back. At the 28:04 mark, PO Reyes places his right forearm across § 87(2)(b) shoulders, similar to PO Martes, and pulls backward while his wrist appears to be on § 87(2)(b) neck (BR35). § 87(2)(b) says, "they're choking me," and "I can't breathe."

At the 28:11 mark, PO Reyes grabs the back of § 87(2)(b) jacket and pulls backward. When PO Cuevas moves to § 87(2)(b) front, at the 28:11 mark, the front of § 87(2)(b) shirt presses on the front of his neck while PO Martes and PO Reyes pull his jacket backwards. § 87(2)(b) coughs, while PO Martes and PO Reyes continue pulling his jacket backward. At the 28:23 mark, PO Martes, who has green fingernails, pushes the top of § 87(2)(b) head toward the gurney, while the officers secure his upper body strap. § 87(2)(b) complains that the officers are breaking his wrists.

§ 87(2)(b) (BR05) stated that while inside of the ambulance, PO Martes pushed his upper body toward the gurney, attempting to straighten his body. § 87(2)(b) handcuff position did not allow for his body to straighten and therefore he was in pain and stating that to the officers. PO Martes pressed her entire upper body down onto § 87(2)(b) upper body, pushing down on his shoulders and neck down, restricting his breathing.

PO Martes (BR15) stated that after observing § 87(2)(b) repositioning his handcuffs, the officers asked him to lay back, which § 87(2)(b) did not do. He continued sitting up, tensing up, and moving his legs off the stretcher. § 87(2)(b) was combative—kicking the officers—and also cursing at them. The officers used force to lay his body down. PO Martes was behind § 87(2)(b) head and had a better position to pull him back. She grabbed § 87(2)(b) shirt when pulling him back. She had her hands around his neck area—mostly around the back of his neck—never closed around his neck or obstructing his breathing. § 87(2)(b) made statements about not being able to breathe while the officers attempted to restrain him, and the officers told him to calm down because he was working himself up. Apart from his statement, PO Martes did not observe any other indication that § 87(2)(b) could not breathe. None of the officers made contact with § 87(2)(b) windpipe. The only officer who was near his neck was PO Martes. None of the officers were making contact with § 87(2)(b) chest or back area when he made statements about restricted breathing. When shown this portion of the incident on her BWC, PO Martes confirmed that § 87(2)(b) jacket is pulled back, but she did not wish to amend any statements.

PO Reyes's statement (BR14) was generally consistent with PO Martes' statement, except for the following additional information. PO Reyes stood behind § 87(2)(b) head and repeatedly pressed on § 87(2)(b) shoulders to hold him down. PO Reyes did not recall § 87(2)(b) say he was being choked at any point. PO Reyes also did not recall § 87(2)(b) being choked by any other officer and denied choking him himself. When shown body worn camera footage, PO Reyes could not identify whose arm was near § 87(2)(b) neck and shoulder area.

When asked whether he pulled backwards on § 87(2)(b) jacket, causing it to make contact with his neck, PO Reyes said “that might have happened,” but he did not remember himself or PO Martes doing so. PO Reyes did not believe he ever made contact with § 87(2)(b) neck or windpipe or did anything that would have restricted § 87(2)(b) breathing at any point during the incident.

PO Cuevas’s statement (**BR16**) was generally consistent with PO Martes’s statement, except for the following additional information. Although § 87(2)(b) had one leg on either side of the handcuffs, with the handcuffs between his legs, § 87(2)(b) was still able to move his legs freely. PO Cuevas did not know if he intended to kick, so he held § 87(2)(b) legs down. PO Cuevas did not recall § 87(2)(b) stating he could not breathe or observing any indication that his breathing was restricted. PO Cuevas did not see any officer making contact with § 87(2)(b) neck. PO Cuevas did not remember § 87(2)(b) stating he was being choked. When shown his BWC, PO Cuevas heard § 87(2)(b) saying he could not breathe and that he was being choked, but he did not independently recall the statements made. PO Cuevas did not observe anything in the video that caused pressure to § 87(2)(b) neck. He observed § 87(2)(b) coughing, but he was unable to identify any actions in the video that may have caused the coughing. PO Cuevas saw PO Martes pulling § 87(2)(b) jacket when moving him toward the gurney. He saw § 87(2)(b) resisting by not laying down. PO Cuevas did not see the jacket making contact with § 87(2)(b) neck or throat while PO Martes pulled it. PO Cuevas believed § 87(2)(b) was “play acting.”

PO Howard’s statement (**BR17**) was generally consistent with PO Martes’s statement, except for the following additional information. PO Howard stated that § 87(2)(b) legs were flailing up and down, trying to stand up, and PO Howard controlled them by holding them in place against the gurney. PO Howard did not recall § 87(2)(b) complaining of pain to his neck or wrist, stating that he was being choked, or mentioning restricted breathing. After watching his BWC, PO Howard recalled § 87(2)(b) saying he could not breathe, that they were breaking his neck and wrists, and that he was being choked. PO Howard saw § 87(2)(b) jacket make contact with his neck as PO Martes pulled it toward the gurney. He stated that PO Martes pulling his shirt may have caused § 87(2)(b) coughing.

The investigation obtained negative results for Threat, Resistance, or Injury reports prepared in regard to this incident (**BR18**).

Patrol Guide procedure 221-01 (**BR23**) states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject’s violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” Members are prohibited from using a chokehold, which is defined as “any pressure to the throat or windpipe [that] may prevent or hinder breathing or reduce intake of air. They are also prohibited from using “any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape or to overcome active physical resistance or assault.”

Patrol Guide procedure 221-02 (**BR24**) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control. They must avoid actions which may result in chest compression, such as sitting, kneeling, or standing on a subject’s chest or back, thereby reducing the subject’s ability to

breathe.

The discussed BWC captures that § 87(2)(b) was noncompliant with the officers' attempts to lay him on his back, as he repeatedly sat up and pushed away from the officers. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations H and I** be **substantiated**.

The discussed BWC shows that while pulling § 87(2)(b) upper body toward the gurney, PO Martes's forearm was in the vicinity of § 87(2)(b) throat (**BR34**), with her fist subsequently applying pressure to the front of § 87(2)(b) throat (**BR36**). Additionally, as she pulled on his jacket, the front of the jacket also made contact with § 87(2)(b) throat, causing § 87(2)(b) to cough—indicating that his breathing was restricted. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations J and K** be **substantiated**.

Although PO Reyes was unable to identify the hand on § 87(2)(b) neck shown on the BWC as his own, the absence of nails with green nail polish on the hand, which PO Martes had during the incident, confirms that the hand was his. After the contact, § 87(2)(b) stated he could not breathe. Additionally, his pulling of § 87(2)(b) jacket was captured making contact with § 87(2)(b) neck, which, as mentioned above, caused § 87(2)(b) to cough. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations L and M** be **substantiated**.

The discussed BWC, which is consistent with the officer statements, captures PO Howard and PO Cuevas restraining § 87(2)(b) legs, § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations N and O** be closed as **within NYPD guidelines**.

Allegation (P) Offensive Language: Inside an ambulance, Police Officer Jovanna Martes made offensive remarks to § 87(2)(b) regarding a perceived mental disability.

PO Martes's BWC (**BR11**) shows, at the 10:44 mark, that during the process of strapping § 87(2)(b) into the gurney, PO Martes tells him he is being recorded and "looks stupid."

§ 87(2)(b) (**BR05**) did not state that PO Martes called him stupid.

PO Martes (**BR15**) stated that she called him "stupid" due to the heat of the moment and to try and gain compliance. There is no specific reason why she used the word stupid.

NYPD Administrative Guide 304-06 (BR21) notes that officers are prohibited from using discourteous or disrespectful remarks regarding another person's age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

§ 87(2)(g)

it is recommended that **Allegation P** be **substantiated**.

Allegation (Q) Force: Inside an ambulance, Police Officer Foizal Khan used physical force against § 87(2)(b)

Allegation (R) Force: Inside an ambulance, Police Officer Tyrel Howard used physical force against § 87(2)(b)

Allegation (S) Force: Inside an ambulance, Police Officer Waldyn Cuevas used physical force against § 87(2)(b)

Allegation (T) Force: Inside an ambulance, Police Officer Jovanna Martes used physical force against § 87(2)(b)

Allegation (U) Force: Inside an ambulance, Police Officer Jovanna Martes used physical force against § 87(2)(b)

Allegation (V) Force: Inside an ambulance, Police Officer Jovanna Martes used a chokehold against § 87(2)(b)

Allegation (W) Force: Inside an ambulance, Police Officer Jovanna Martes restricted § 87(2)(b) breathing.

Allegation (X) Abuse of Authority: Inside an ambulance, Police Officer Jovanna Martes threatened to arrest § 87(2)(b)

PO Howard's BWC (**BR25**) shows that, at the 16:41 mark, when attempting to strap § 87(2)(b) onto the gurney, PO Martes places her two hands on the left side of § 87(2)(b) forehead and pushes his head toward the gurney with the right side of his face against the gurney. Given § 87(2)(b) position with his handcuffs between his legs, § 87(2)(b) is unable to lay straight back. § 87(2)(b) body is on his right side, while PO Martes holds his head down on its right side. § 87(2)(b) screams that they are breaking his wrists. PO Howard and PO Cuevas hold and strap down § 87(2)(b) legs, while PO Reyes attempts to secure the strap on § 87(2)(b) upper body. At the 17:02 mark, § 87(2)(b) complains about his neck, while PO Martes still holds his head. She lets go and, at the 17:08 mark, § 87(2)(b) calls PO Martes a "bitch" and a "dumb faggot bitch," at which point PO Martes pushes § 87(2)(b) head down, again, by pressing on the left side of his face with both hands. § 87(2)(b) calls PO Martes more names and asks why she is assaulting him. At the 17:30 mark, § 87(2)(b) head hangs off the left side of the gurney, while PO Martes presses down on it with her left hand. § 87(2)(b) asks her to get off of his neck and PO Martes denies anyone touching his neck. At the 17:40 mark, PO Reyes places a mask on § 87(2)(b) while his head is over the edge of the gurney. § 87(2)(b) moves his head around, preventing the mask from being secured. At the 17:51 mark, PO Howard intervenes and places another mask on § 87(2)(b) face. § 87(2)(b) bites the mask, and PO Martes pushes his head further over the gurney by holding the back of his neck and pressing down. She tells him not to bite. PO Howard pulls at the mask, but § 87(2)(b) holds onto it with his teeth. At the 18:07 mark, § 87(2)(b) opens his mouth, moves his tongue around, and moves his head toward PO Howard's hand. PO Howard tells him to stop trying to bite, while PO Martes pushes § 87(2)(b) head further over the gurney. § 87(2)(b) moves his face toward the gurney, preventing PO Howard from securing the mask. At the 18:28 mark, PO Martes tells § 87(2)(b) that if he bites, he is getting "locked up." PO Martes holds § 87(2)(b) head against the gurney until the 23:54 mark, when Sgt. Oconnor tells her to let go. During that time, PO Howard, PO Khan, and PO Cuevas hold § 87(2)(b) body in place.

PO Martes's BWC (**BR11**) is obstructed by her jacket for the majority of this portion of the incident. From the 11:18 mark, PO Martes's jacket moves slightly, as she holds § 87(2)(b) head against the gurney just after he began insulting her. Her left hand is on the side of his neck. It is unclear if her hand ever closes over his neck. Her jacket continues moving and occasionally obstructs the footage. At the 11:40 mark, PO Martes's hand remains on the side of § 87(2)(b) neck, pressing down. § 87(2)(b) tells her to get off his neck. At the 11:51 mark, PO Martes's

hand is closed behind § 87(2)(b) neck, as she pushes his head over the side of the gurney. PO Reyes places a mask on § 87(2)(b) PO Martes remains with one hand behind § 87(2)(b) neck and the other holding the top of his head. As § 87(2)(b) moves his head around, PO Martes's hands shift from the back of his neck to the side. At the 13:21 mark, § 87(2)(b) says his neck is over the "silver part." At the 14:19 mark, § 87(2)(b) says he cannot feel his neck, while PO Martes holds his head down. At the 15:29 mark, § 87(2)(b) says he cannot feel his hands or his head. He says he is going to "pass out" and that he could not breathe. At the 16:00 mark, PO Martes pulls § 87(2)(b) jacket and pushes his head back toward the other side of the gurney. § 87(2)(b) screams and says that he cannot move back. At the 17:02 mark, PO Martes moves her jacket from in front of her camera. § 87(2)(b) head is on the gurney as she presses the side of his face toward the gurney. There is blood on pillow by § 87(2)(b) forehead. At the 17:16 mark, § 87(2)(b) moves his head toward the edge of the gurney, while PO Martes continues holding on to the side. At the 17:25 mark, § 87(2)(b) head moves over the side of the gurney. PO Martes pushes the side of § 87(2)(b) head over the edge of the gurney and § 87(2)(b) screams, requesting that she stop. At the 18:00 mark, PO Martes lets go of his neck and an inch-long laceration is visible on § 87(2)(b) forehead. It is unclear how the injury occurred.

A side-by-side view of PO Martes and PO Howard's BWC (BR39), from the 14:36:45 time stamp to the 14:37:49 time stamp, shows that PO Martes is the only officer making contact with § 87(2)(b) head. At the beginning of the footage, there is no blood on the pillow of § 87(2)(b) head; however, by the end of the clip, there is blood captured by § 87(2)(b) head. § 87(2)(b) statement (BR05) regarding the use of force in the ambulance was minimal. As noted in the previous allegations, he stated that his handcuff position did not allow for his body to straighten and therefore he was in pain when the officers attempted to straighten his body. PO Martes pressed her entire upper body down onto § 87(2)(b) upper body, pushing his shoulders, neck, and his face toward the left side. PO Martes remained in that position for about 15 to 20 minutes, during which time § 87(2)(b) breathing was restricted. PO Cuevas was by § 87(2)(b) legs, bringing them together and crossed over each other. § 87(2)(b) described it as a twisting motion that cause him pain, as his legs were unable to straighten due to his handcuffed position. On the way to the hospital, § 87(2)(b) stated that his gurney was not fastened. When the officers let go of him, the gurney moved across the ambulance, causing § 87(2)(b) forehead to make contact with the bench, which caused a laceration. He provided four photos of his injuries—the head laceration and the injuries to his elbow, wrist and finger (BR37). § 87(2)(b) only mentioned the head laceration in his statement, and it is unclear when the photos of the other injuries were taken.

PO Martes (BR15) stated that when securing § 87(2)(b) to the gurney, she was behind § 87(2)(b) head. The officers issued multiple commands to lay back, but § 87(2)(b) consistently refused. § 87(2)(b) called PO Martes a "fat bitch," threatened to sue them, called another officer a "faggot," accused PO Martes of "fucking the whole precinct," and told another officer that his wife was "getting fucked by another guy." PO Martes had her hands around § 87(2)(b) neck area—mostly around the back of his neck—never closed around his neck or obstructing his breathing. She tried holding his head down by pushing his face down with a flat open palm on his jaw, but § 87(2)(b) was so sweaty that she would slide to his cheek area. PO Martes only made contact with the back of § 87(2)(b) neck, never the front. PO Martes did not remember why she held § 87(2)(b) head over the side of the stretcher for over a minute. § 87(2)(b) was spitting while the officers were trying to lay his body flat. PO Martes pulled § 87(2)(b) back by his shoulders, while PO Howard attempted to put a face mask on § 87(2)(b) § 87(2)(b) attempted to bite PO Howard but did not make contact. She did not remember any adjustments to § 87(2)(b) positioning to place his head on the gurney. PO Martes told § 87(2)(b) that he would get locked up if he bites to deter him from biting PO Howard. If § 87(2)(b) bit PO Howard, he could have been arrested for assault in the third degree. PO Martes continued holding onto § 87(2)(b) head. She was unaware of anything that would have

prevented § 87(2)(b) from moving his head back. PO Martes did not have any independent recollection of § 87(2)(b) head obtaining a laceration. She saw the laceration on § 87(2)(b) head when presented with her BWC, but she did not recall how he obtained the laceration.

PO Cuevas (BR16) stated that while securing § 87(2)(b) to the gurney, he did not know if § 87(2)(b) intended to kick; therefore, he held § 87(2)(b) legs down. PO Cuevas denied twisting § 87(2)(b) legs or crossing them over the other. § 87(2)(b) legs were bent, and he refused to straighten them. PO Cuevas was focused on § 87(2)(b) legs because he was preventing him from kicking. He did not recall § 87(2)(b) complaining of pain. PO Cuevas stated that § 87(2)(b) was able to straighten his legs but refused to do so. PO Cuevas held onto § 87(2)(b) legs until EMS secured them with a strap. After viewing his BWC, PO Cuevas heard § 87(2)(b) complain of pain to his wrists and neck but was unable to determine what could have caused that pain. PO Martes held onto § 87(2)(b) head, but PO Cuevas did not believe that could have caused him pain. When presented with the photos of § 87(2)(b) injuries (BR37), which PO Cuevas did not recall seeing, PO Cuevas did not recall seeing or doing anything that may have caused those injuries.

PO Howard (BR17) stated that he held onto § 87(2)(b) legs when strapping § 87(2)(b) onto the gurney. During the struggle, § 87(2)(b) was coughing in “everyone’s faces,” while the officers maintained control of his upper body. Given that this was during the pandemic, PO Howard decided to place a face mask on § 87(2)(b) but the face mask and attempted to bite PO Howard and other officers who tried to help. PO Howard did not remember if he got the mask on § 87(2)(b). PO Martes held § 87(2)(b) head against the gurney, using both hands to push the side of his face. PO Howard did not recall how long PO Martes held § 87(2)(b) head in place, or if she held his head off of the gurney. PO Howard was concerned with holding § 87(2)(b) against the gurney and did not ever feel the need to interfere with PO Martes’s contact with his head. PO Howard did not observe any injuries on § 87(2)(b). When presented photos of § 87(2)(b) injuries (BR37), PO Howard did not recall seeing them. He was unable to identify any actions officers took that may have caused those injuries.

PO Khan was not interviewed because his statement would not affect the disposition of these allegations.

The investigation obtained negative results for Threat, Resistance, or Injury reports prepared in regard to this incident (BR18).

Patrol Guide procedure 221-01 (BR23) states that when determining if force is reasonable, uniformed members of service should consider the following: “The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject’s violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.” Members shall not use any level of force on handcuffed or otherwise restrained subjects unless necessary to prevent injury, escape, or to overcome active physical resistance or assault. Officers are restricted from using a chokehold or applying any pressure to someone’s throat or windpipe.

Patrol Guide procedure 221-02 (BR24) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps.

New York Consolidated Law Service, Penal Law 120.08 (BR26) notes that a person is guilty of assaulting a police officer when, with intent to prevent an officer from performing a lawful duty or causes serious physical injury to such officer.

§ 87(2)(b) was verbally combative, refused to comply with the officers' orders, and attempted to bite the officers while in the ambulance. § 87(2)(g)

it is recommended that **Allegations Q, R, and S** be closed as **within NYPD guidelines**.

The discussed BWC shows that § 87(2)(b) body was unable to lay flat due to the placement of his handcuffs. PO Martes pressed § 87(2)(b) head against the gurney, occasionally moving his head backward to straighten his body further. § 87(2)(g)

it is recommended that **Allegation T** be closed as **within NYPD guidelines**.

However, when § 87(2)(b) head was hanging over the side of the gurney, at the 17:25 mark in PO Martes's BWC, PO Martes applied downward pressure to § 87(2)(b) head, which caused his neck to bend and § 87(2)(b) to scream in pain. PO Martes applied pressure to § 87(2)(b) head for about 18-seconds before she attempted to move his head back onto the gurney. § 87(2)(g)

it is recommended that **Allegation U** be **substantiated**.

§ 87(2)(g) none of the footage captures PO Martes making contact with the front of § 87(2)(b) throat, § 87(2)(g)

it is recommended that **Allegations V and W** be closed as **unable to determine**.

The discussed BWC shows that § 87(2)(b) was attempting to bite either the officers, the mask they were trying to place on his face, or both. § 87(2)(g)

it is recommended that **Allegation X** be closed as **within NYPD guidelines**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[Redacted text block]

§ 87(2)(g), § 87(4-b)

[Redacted text block]

§ 87(2)(g), § 87(4-b)

[Redacted text block]

Civilian and Officer CCRB Histories

- § 87(2)(b) [Redacted text]

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]

- PO Li has been a member of service for six years and this is the first CCRB complaint in which he has been named a subject.
- PO Martes has been a member of service for 10 years. She has been named the subject in five other CCRB complaints and 12 allegations, three of which have been substantiated:
 - 201901679 involves substantiated allegations of discourteous action, discourteous word, and offensive language. The NYPD recommended and imposed instructions.
- PO Howard has been a member of service for four years and this is the first CCRB complaint in which he has been named a subject.
- PO Cuevas has been a member of service for one year and this is the first CCRB complaint in which he has been named a subject.
- PO Khan has been a member of service for five years and this is the first CCRB complaint in which he has been named a subject.
- PO Reyes has been a member of service for seven years and this is the first CCRB complaint in which he has been named a subject.
- Sgt. Oconnor has been a member of service for 16 years. He has been named the subject in nine other CCRB complaints and 17 allegations, four of which have been substantiated:
 - 200705527 involved substantiated allegations of a frisk, stop, threat of summons, and failure to prepare a stop and frisk report. The NYPD recommended and imposed command discipline B.

Mediation, Civil, and Criminal Histories

- This case was unsuitable for mediation.
- On January 24, 2023, the office of the New York City Comptroller confirmed that § 87(2)(b) [REDACTED] has not filed a notice of claim regarding this incident (BR32).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad: 10

Investigator:	<u><i>Jessica Russo</i></u>	<u>SI Jessica Russo</u>	<u>02/17/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>02/28/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date